

Sanju Midha vs Prachi on 23 September, 2010

Author: Alok Singh

Bench: Alok Singh

IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

Date of Decision: September 23, 2010

C.R. No. 1145 of 2010

Sanju Midha.

...Petitioner

Versus

Prachi.

... Respondent

Present: Mr. Aman Pal, Advocate,
for the petitioner.

Mr. Manish Soni, Advocate,
for the respondent.

C.R. No. 2971 of 2010

Alka (Prachi).

...Petitioner

Versus

Sanju.

... Respondent

Present: Mr. Manish Soni, Advocate,
for the petitioner.

Mr. Aman Pal, Advocate,
for the respondent.

CORAM: HON'BLE MR. JUSTICE ALOK SINGH

1. Whether reporters of local news papers may be Allowed to see judgment?
2. To be referred to reporters or not?
3. Whether the judgment should be reported in the Digest?

Alok Singh, J.

Since in both the petitions (C.R. No. 1145 of 2010 and C.R. No. 2971 of 2010), impugned order is one and wife is claiming enhancement maintenance under Section 24 of the Hindu Marriage Act (hereinafter referred to as the Act) and husband is objecting application under Section 24 of the Act, hence, with the consent of the learned counsel for the parties, both the petitions are taken for hearing together and are being decided by this common judgment.

Present petition is filed by the husband - petitioner challenging the order dated 19.12.2009 passed by learned Additional District Judge, Panipat, thereby allowing the application moved by the wife-respondent under Section 24 of the Hindu Marriage Act, directing the husband-petitioner herein to pay Rs. 7,000/- per month to the applicant-wife from the date of filing of the application as maintenance pendente- lite and also to pay Rs. 10,000/- towards composite litigation expenses.

Learned counsel for the husband vehemently argued that husband is having no permanent source of income and he is maintaining himself by selling cow milk. It is further argued by the learned counsel for the husband that husband is having only one cow and by selling the milk of one cow, the husband is anyhow maintaining himself. Learned counsel for the husband further stated that factory shed which has been let out on the monthly income of Rs. 50,000/- per month belongs to his mother and permanent big house in which husband is residing, photograph of which are placed on record, is owned by his mother and husband is residing therein on the mercy of his mother, hence, husband is not in a position to pay any maintenance to the wife. It has further been contended by the learned counsel for the husband that wife is well educated and at the time of marriage, she was teaching and by tuition, she was earning more than Rs.25,000/- per month. It has further been contended that in the peculiar circumstances of the case, husband is entitled for maintenance from the wife since wife's income is more than the husband's income and wife is not entitled for any maintenance.

Learned counsel for the wife vehemently argued that husband is maintaining luxury car, although in the name of the mother of the husband and they are having a good residential house on the main GT Road and having rental income, they have let out the factory shed, hence, just to create defence, husband is suggesting that by selling cow milk, he is anyhow maintaining himself. Learned counsel for the wife further contends that husband is a strong built man, he is managing entire affair of the family and minimum income of the husband is Rs. One lakh per month, hence, wife is entitled minimum Rs.20,000/- per month from the husband as per the status of the family.

Undisputedly, a house in which husband is residing is on the main G.T. Karnal Road. From the photographs, I find it is double storey, very good constructed house. Husband is residing in a big house and is moving here and there in a car, his family income is not less than Rs. One lac per month as suggested by the wife before the learned Trial Court, hence, merely because everything is being done by the husband in the name of his mother, husband cannot refuse to pay maintenance to the wife.

In the peculiar facts and circumstances of the case, I find that income of the husband is not less than Rs.40,000/- per month. As per the status of the family, I find that wife must be paid Rs.15,000/- per month.

Both the petitions are disposed of with the direction that now husband shall pay pendente-lite maintenance at the rate of Rs.15,000/- per month to the wife.

A photo copy of the order be placed on the files of the connected matters.

September 23, 2010
vkd

(Alok Singh)
Judge